

26STCP01167 26STCP01167

County: los-angeles

Division: Civil Law and Motion

Department: 833

Hearing date: 2026-08-12

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Case Number: 26STCP01167 Hearing Date: August 12, 2026 Dept: 833

Church of Scientology International Case No. 26STCP01167

Hearing:

August 12, 2026

v.

Location:

Stanley Mosk Courthouse

Department:

833

City

of Los Angeles, et. al. Judge:

Joseph Lipner

[Tentative] Order Sustaining

Demurrer to Petition for Writ of Mandate

Respondent City of Los Angeles

("Respondent") demurs to the verified Petition for Writ of Mandate, Injunctive

Relief and Declaratory Relief filled by Petitioner Church of Scientology

International ("Petitioner").

The

Court SUSTAINS the demurrer. Petitioner has not sought leave to amend in its papers. The Court will discuss with the parties at the hearing whether leave to amend is appropriate.

BACKGROUND

This CPRA Petition requests records regarding allegedly false representations given to the LAPD by Christina Carnell Bixler. (Petition, ¶ 1.) In 2018, Bixler allegedly claimed an incident of stalking and battery by Steven L. Miller. (Petition, ¶¶ 1, 10-12.) Bixler believed Miller was part of the Church of Scientology. (Petition, ¶ 13.) In reality, Miller is a general building contractor not connected to the Church of Scientology. (Petition, ¶ 13.)

The detective investigating this matter found Bixler's claim that a member of the Church had committed a crime unsupported. (Petition, ¶ 14.) However, the detective reported the crime to the City Attorney's Office. (Petition, ¶ 14.) The City Attorney's Office rejected the case. (Petition, ¶ 14.) The detective also informed Deputy District Attorney Reinhold Muller, who stated in other court proceedings that Bixler had been stalked by representatives of the Church. (Petition, ¶ 15.)

Five years later, Petitioner submitted a complaint to the LAPD against Bixler for making a false report to law enforcement. (Petition, ¶ 16.) Petitioner alleged that Bixler's false report is a crime that caused serious harm to the Church and its parishioners. (Petition, ¶ 16.)

Petitioner requested documents from the Los Angeles Police Department ("LAPD") to show that Petitioner, its members and agents did not have anything to do with the alleged stalking of Bixler. (Petition, ¶ 2.) Petitioner requested that the search for documents go back to 2018, when Bixler had made the complaint. (Petition, ¶ 18.) Respondent denied Petitioner's request on the grounds that the records were "investigatory records." (Petition, ¶ 21.)

Petitioner also requested documents on the grounds that it was a victim of a crime. (Petition, ¶ 22.) LAPD denied the document requests on the grounds that that the crime report does not list the Church of Scientology as a victim. (Petition, ¶ 23.)

LEGAL STANDARD

A demurrer tests the sufficiency of a pleading, and the grounds for a demurrer must appear on the face of the pleading or from judicially noticeable matters. (Code Civil Proc. § 430.30, subd. (a); Blank v. Kirwan (1985) 39 Cal.3d 311, 318.) “We assume the truth of the allegations in the complaint, but do not assume the truth of contentions, deductions, or conclusions of law.” (California Logistics, Inc. v. State (2008) 161 Cal.App.4th 242, 247.) “A demurrer tests the pleadings alone and not the evidence or other extrinsic matters.” (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.) The allegations in the petition must be liberally construed in favor of Petitioner on demurrer. (See Mobil Oil Corp. v Exxon Corp. (1986) 177 Cal.App.3d 942, 947.) “A demurrer must dispose of an entire cause of action to be sustained.” (Poizner v. Fremont General Corp. (2007) 148 Cal.App.4th 97, 119.)

DISCUSSION

A.

The documents requested are investigatory records

Government

Code § 7923.600, subd. (a) does not require the disclosure of records of complaints to or investigations conducted by local police agencies. As the California Supreme Court held in Haynie v. Superior Court (2001) 26 Cal.4th 1061, the law enforcement investigatory records exemption applies regardless of whether an investigation ultimately leads to enforcement proceedings. (Id. at p. 1070.) It applies to longer term investigations and routine investigations alike. (Ibid.)

Petitioner

seeks (1) all internal memos, chronology logs, reports, 314 reports regarding this incident; (2) all photos/audio or video recordings relating to this incident; and (3) the disposition of this incident showing there is no evidence or proof that the Church of Scientology was involved. (Petition, Exh. 2.) Petitioner made this request of LAPD. (Petition, Exh. 2.)

These

records, on their face, are “complaints to or investigations conducted by local police agencies.” Based on the Petition,

the records requested are quintessential investigatory records. Petitioner is not entitled to them.

B. The

documents requested are not subject to the exception of Government Code Section 7923.605

Petitioner

asserts that Government Code Section 7923.605 entitles it to the older investigative file of Bixler's claim against it because it is a "victim" of a false police report and the earlier report against it is the "incident."

Respondent argues that this statutory exemption does not cover Petitioner's request as a matter of law. The Court agrees with Respondent.

Government

Code Section 7923.605, subdivision (a) states as follows, with emphasis added:

Notwithstanding

Section 7923.600 [which protects investigatory materials], a state or local law enforcement agency shall disclose the names and addresses of person involved in, or witnesses other than confidential informants to, the incident, the description of any property involved, the date, time, and location of the incident, all diagrams, statements of the parties involved in the incident, the statements of all witnesses, other than confidential informants, to the victims of an incident, or an authorized representative thereof, an insurance carrier against which a claim has been or might be made, and any person suffering bodily injury or property damage or loss, as the result of the incident caused by arson, burglary, fire, explosion, larceny, robbery, carjacking, vandalism, vehicle theft, or a crime as designated by subdivision (b) of Section 13951. .

. .

Petitioner

alleges that it was the victim of a crime when Bixler made allegedly false allegations about Miller being part of the Church of Scientology. (Petition, ¶ 16.) This is a novel reading of the statute, but if accepted it would turn the entire statutory scheme on its head.

A

court's "fundamental task in construing a statute is to ascertain the

Legislature's intent [and] effectuate the law's purpose. We begin our inquiry by examining the statute's words, giving them a plain and commonsense meaning. In doing so, however, we do not consider the statutory language in isolation. Rather we look to the entire substance of the statute . . . in order to determine the scope and purpose of the provision. That is, we construe the words in question in context, keeping in mind the nature and obvious purpose of the statute." (In re Greg F. (2012) 55 Cal.4th 393, 406 [citations and internal quotations omitted].)

The statute does not define either the word "incident" or "victim," but in context the Legislature's meaning is clear. The statutes make investigative materials by police officers exempt from disclosure under CPRA. (Gov. Code § 7923.600.) However, the Legislature granted an exception for "victims" of the "incident" and allowed the disclosure only to them of certain material about "the incident." (Gov. Code § 7923.605, subd. (a).) In context, the statutes give extra rights to the victim on whose behalf the police are investigating. The victim is entitled to some of the file of the investigation of the incident she reported to the police, though most of the public is not entitled to that file.

Petitioner would have the statute mean the opposite. According to Petitioner, an alleged perpetrator investigated by the police become a "victim" by asserting that the earlier allegations against the alleged perpetrator constituted a false claim. Thus, parties under investigation would have a robust pathway to delve into the investigatory materials against them—precisely what Government Code Section 7923.600 forbids. Nothing in either Government Code Sections 7923.600 or 7923.605 provides for such an anomalous result.

The Supreme Court has stated that someone must be part of a group listed in the statute to get certain records; "[r]equests for broader disclosure must be directed to the Legislature." (Williams v. Superior Court (1993) 5 Cal.4th 337, 361 (Williams).) Petitioner is not the party that the exception is directed to.

CONCLUSION

The Court SUSTAINS the demurrer. The Court will discuss leave to amend at the hearing.

IT IS SO ORDERED.

Dated: August 12,
2026

Joseph
Lipner

Superior
Court Judge